



CHAPTER lxxxix.

An Act to incorporate and confer powers upon the Ericht Water and Electric Power Company to enable them to construct and maintain works and to acquire lands and for other purposes. A.D. 1912.
[7th August 1912.]

WHEREAS the construction and working of a water power and electrical generating station or stations at Loch Rannoch in the county of Perth and in connection therewith and for that and other purposes the construction of the waterworks hereinafter described would be of public and local advantage:

And whereas the persons in this Act named with others are willing at their own expense to construct such waterworks and generating stations and other works and it is expedient that they be incorporated into a company (in this Act called "the Company") and that power should be conferred on them for such purposes and for acquiring certain lands for the waterworks generating stations buildings and works and generally for carrying out the objects and provisions of this Act:

And whereas it is expedient that powers should be conferred upon the Company to make contracts and agreements with local authorities and persons and others for the supply of electrical energy in bulk or otherwise and for other purposes:

And whereas it is expedient that the other powers and provisions in this Act contained should be conferred on the Company:

And whereas plans and sections showing the lines situations and levels of the several works authorised by this Act and describing the lands to be taken for the purposes of this Act

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A.D. 1912. with a book of reference containing the names of the owners or reputed owners lessees or reputed lessees and of the occupiers of the lands and other property required or which may be taken for the several purposes or under the powers of this Act were duly deposited with the principal sheriff clerk of the county of Perth and are hereinafter respectively referred to as the deposited plans sections and book of reference :

And whereas these objects cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

Short title
and com-
mencement
of Act.

1. This Act may be cited as the *Ericht Water and Electric Power Act 1912* and shall come into operation at the date of the passing of this Act which date is hereinafter referred to as "the commencement of this Act."

Application
of Electric
Lighting
Acts and
incorporated
Acts.

2. The provisions of the *Electric Lighting Acts 1882 to 1909* and the schedule to the *Electric Lighting (Clauses) Act 1899* which are contained in the sections thereof hereinafter mentioned shall not apply to the undertaking under this Act or to the Company in relation to that undertaking anything in any of the said Acts to the contrary notwithstanding (that is to say) :—

Sections 1 to 5 7 8 10 11 18 (so far as it relates to lamps or burners) 19 27 29 30 34 and 37 of the *Electric Lighting Act 1882* and sections 2 and 3 of the *Electric Lighting Act 1888* and sections 2 3 4 5 7 8 9 21 to 35 41 63 to 68 75 78 and 84 of the schedule to the said Act of 1899 and section 7 of the *Electric Lighting Act 1909* ;

but except as aforesaid the provisions of the *Electric Lighting Acts 1882 to 1909* and the said schedule are so far as not inconsistent with or altered by the provisions of this Act incorporated with and form part of this Act.

The provisions of section 14 of the schedule to the *Electric Lighting (Clauses) Act 1899* shall extend and apply to the laying down and placing under this Act of any cables or other works in through under along over or across the bed and foreshore of any river.

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3. The following Acts and parts of Acts are (except where expressly varied by or inconsistent with this Act) incorporated with and form part of this Act (that is to say):—

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Incorporation of
general Acts.

The Companies Clauses Consolidation (Scotland) Act 1845;

Part I. (Cancellation and surrender of shares) and Part III. (Debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts;

The Lands Clauses Acts;

Sections 13 to 17 28 to 34 85 and 87 of the Waterworks Clauses Act 1847;

The provisions of the Railways Clauses Consolidation (Scotland) Act 1845 with respect to the temporary occupation of lands near the railway during the construction thereof and with respect to the crossing of roads and other interferences therewith shall apply to the works by this Act authorised and in construing the said clauses and provisions "the railway" means the waterworks authorised by this Act and the works immediately connected therewith and "the centre of the railway" means any part of these works.

4. In this Act unless the context otherwise requires—

Interpretation.

The several words terms and expressions to which by the Acts wholly or partially incorporated herewith meanings are assigned shall have the same respective meanings unless there be something to the contrary contained therein;

The expression "the Company" means the Company incorporated by this Act;

The expressions "the waterworks" "the undertaking" mean and include respectively the waterworks and the undertaking by this Act authorised;

The expression "authorised distributor" means any local authority company body or person authorised by Act of Parliament or Provisional Order confirmed by Parliament or licence to give a general supply of energy within the part of the parish of Fortingall situate on the north side of Loch Laidon the River Ghaioir Loch

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Rannoch and the River Tummel or any part thereof which is situate within a distance of ten miles from the lands described in the First Schedule to this Act.

Company incorporated.

5. The Right Honourable John James Viscount Dalrymple The Right Honourable Archibald Seton Lord Montgomerie and Archibald Brown Campbell and all other persons who have already subscribed to or shall hereafter become proprietors in the undertaking and their executors administrators successors and assigns respectively shall be and are hereby united into a company for the purpose of making and maintaining the water-works and water power and generating stations hereinafter mentioned and for other the purposes of this Act and for those purposes shall be and are hereby incorporated by the name of "The Ericht Water and Electric Power Company" and by that name shall be a body corporate with perpetual succession and a common seal and with power to purchase take hold and dispose of lands and other property for the purposes of this Act and with all the other powers and privileges of a body corporate.

Domicil of Company for purposes of Act.

6. The domicil of the Company for the purpose of any judicial proceedings relating to the undertaking authorised by this Act or to the execution of any of the powers herein contained shall be deemed to be Edinburgh.

General purposes of Company.

7. Subject to the provisions of this Act the Company may provide water under pressure or otherwise for the purpose of supplying motive power and may supply and use such power by hydraulic pressure or otherwise for any purposes to which such power is or may be applicable and may generate use and supply electrical energy for any purposes to which such energy is or may be applicable and may erect lay down and maintain any buildings works machinery mains pipes and other apparatus which may be necessary or useful for those purposes and may acquire and work but not exclusively any patents relating to the supply of water and motive power and to the generation storage supply measurement transformation and distribution of electrical energy and may within the area of supply hereinafter specified supply any person with water power motive power or electrical energy at such rates and charges and upon such terms and conditions as may be agreed on between them and the person obtaining such supply and generally may do all such acts and things as may be necessary or useful for giving such supply or incidental thereto.

LANDS AND WORKS.

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8. The Company may subject to the provisions of this Act enter upon take hold and use compulsorily or by agreement the lands in the parish of Fortingall in the county of Perth shown on the deposited plans and described in the deposited book of reference and in the First Schedule to this Act or any part or parts thereof and may use those lands or any portion thereof for the erection establishment and maintenance of a station or stations for the development and use of water power and motive power and for generating electrical energy with all necessary and convenient buildings turbines engines dynamos mains machinery apparatus and conveniences connected with such station or stations and may hold use let or dispose of so much of the said lands as are not required for the purposes aforesaid for the erection establishment construction working and maintenance of manufactories mills workshops industries houses buildings wharves piers rails landing places and works and for all or any of the purposes of this Act.

Lands for
generating
stations.

9. Subject to the provisions of this Act the Company may manufacture acquire maintain and use and sell let on hire and otherwise dispose of electric and other mains storage and other batteries dynamos accumulators cables conductors services wires tubes pipes insulators meters reservoirs distributing cut-out and other boxes switches transformers fittings motors and other apparatus for producing transmitting storing measuring regulating and distributing electrical energy for public and private purposes or for converting the same into motive power heat or otherwise and any other machinery apparatus and appliances necessary or useful for any of the purposes of this Act and may lay down and use pipes conduits and other channels of water supply for feeding or condensing purposes or other purposes connected with the buildings works and conveniences mains and appliances erected used or maintained and the production supply and distribution of electrical energy thereby.

Storage and
distributing
works.

10. Subject to the provisions of this Act the Company may make construct lay down and maintain in the lines and situations and according to the levels shown on the deposited plans and sections the several works shown on the deposited plans and hereinafter described or some one or more of them or some

Power to
make works.

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A.D. 1912. — part or parts thereof together with all proper works and conveniences in connection therewith including embankments bridges roads approaches fences ways wells piers rails reservoirs basins valve chambers gauges dams weirs sluices waste weirs outlets outfalls adits engines tunnels bye-channels cuts dredgings shafts aqueducts culverts conduits drains mains cable ways overhead wires pipes telegraphs telephones and other means of communication and houses buildings apparatus and conveniences connected with the said works or with any one or more of them or subsidiary thereto or which may be necessary for maintaining conducting inspecting and repairing and managing and using the same and may enter upon take hold appropriate and acquire and use compulsorily or by agreement such of the lands streams and property shown on the deposited plans and described in the deposited book of reference as they may require for the purposes of the said works or some of them The said works are the following (that is to say):—

Work No. 2 A diverting weir across the Allt Ghlas wholly situate in the parish of Fortingall in the county of Perth commencing at a point on or near the east bank of the Allt Ghlas five hundred and forty yards or thereby measured in a north-easterly direction from the junction of the Allt Ghlas with the River Ericht and terminating at a point on or near the west bank of the Allt Ghlas five hundred and fifteen yards or thereby measured in a north-easterly direction from the before-mentioned junction of the Allt Ghlas with the River Ericht:

Work No. 3 A catchwater aqueduct conduit tunnel or line or lines of pipes wholly situate in the parish of Fortingall in the county of Perth commencing at the weir Work No. 2 hereinbefore mentioned and terminating on the easterly side of the River Ericht at a point six hundred and fifty yards or thereby measured in a north-westerly direction from the junction of the Allt Ghlas with the River Ericht:

Work No. 5 A catchwater aqueduct conduit tunnel or line or lines of pipes wholly situate in the parish of Fortingall in the county of Perth commencing at a point in the River Ericht six hundred yards or thereby measured in a north-westerly direction from the junction of the Allt

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Ghlas with the River Ericht and terminating at a point in Loch Rannoch five hundred and sixty yards or thereby measured in an easterly direction from the centre of the Bridge of Ericht: A.D. 1912.

Provided that any telegraphs telephones and other means of electric communication constructed by the Company shall not be used for the purpose of transmitting telegrams in contravention of the exclusive privilege conferred upon the Postmaster-General by the Telegraph Act of 1869.

11. If there be any omission misstatement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited book of reference the Company after giving ten days' notice to the owners lessees and occupiers of the lands in question may apply to the sheriff of the county in which such lands are situate for the correction thereof and if it appear to the sheriff that the omission misstatement or wrong description arose from mistake he shall certify the same accordingly and shall in his certificate state the particulars of the omission and in what respect any such matter is misstated or wrongly described and such certificate shall be deposited with the principal sheriff clerk for the said county and a duplicate thereof shall also be deposited with the town clerk of any burgh or with the clerk of the parish council of any parish outside a burgh in which the lands affected thereby are situate and such certificate and duplicate respectively shall be kept by such clerks respectively with the other documents to which the same relate and thereupon the deposited plans and book of reference shall be deemed to be corrected according to such certificate and it shall be lawful for the Company to take the lands and execute the works in accordance with such certificate. Correction of errors in deposited plans and book of reference.

12. The Company may in constructing the works by this Act authorised deviate from the lines or position thereof as shown on the deposited plans relating thereto to the extent of the limits of deviation shown thereon and the Company may also deviate from the levels of all or any of the works authorised by this Act as shown on the deposited sections to any extent not exceeding five feet upwards and to any extent downwards Provided that the Company may deviate vertically to any extent Power to deviate.

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A.D. 1912. upward with the consent of the owner or owners of the lands affected.

Power to
alter roads
&c. temporarily.

13. For the purposes and during the execution of the several works by this Act authorised and in maintaining the same and subject to the provisions of this Act the Company may from time to time in any of the lands shown on the deposited plans and specified in the deposited book of reference temporarily break up or cross over or under alter stop up or divert any highways roads lanes paths bridges passages sewers drains streams watercourses gas pipes and water pipes and electric or telephonic apparatus which they may from time to time find it expedient for any of those purposes so to interfere with providing when possible a proper temporary substitute before interrupting the traffic on any such highway or passage or the flow of water gas sewage or electricity in any such sewer drain stream watercourse pipe or apparatus and making full compensation to all persons injuriously affected by anything done under the provisions of this section and in particular making full compensation to the trustees of the deceased Colonel Lachlan Macpherson of Glentruim and to Albert Cameron Macpherson of Cluny for any damage done to roads footpaths bridges culverts or lands situated on their respective estates through the exercise of any of the aforementioned powers Provided that nothing in this section shall extend to or authorise any interference with any telegraphic line (as defined by the Telegraph Act 1878) or other property of His Majesty's Postmaster-General Provided also that nothing in this section shall extend to or authorise any interference with any works of any undertakers within the meaning of the Electric Lighting Acts 1882 to 1909 to which the provisions of section 15 of the Electric Lighting Act 1882 apply.

Power to
take water.

14. The Company may by means of the works hereinbefore described or some of them take appropriate store use collect abstract divert and distribute for the purposes of the said works the waters of the River Ericht and of the following streams and tributaries flowing into the said river as follows (that is to say):—

Allt Ghlas Allt a' Choire Ghlais Allt an Luib Bhain Allt
a' Choire Odhair Bhig Allt Loch' Mheugaidh Allt Coire
a' Mhor-fhir and all brooks streams waters springs and

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all tributaries flowing into or arising in the said streams or any one or more of them and flowing into or within the works hereinbefore described which said waters flow into the River Ericht: A.D. 1912.

Provided that all waters collected abstracted diverted and used by the Company under the powers of this section shall after use be discharged into Loch Rannoch or the River Ericht.

15. Nothing in this Act contained shall authorise the Company to do any act whereby the natural level of the water in Loch Ericht will be raised or lowered or otherwise affected. Level of water in Loch Ericht not to be raised or lowered.

16. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may (if they think fit) subject to the provisions of those Acts and of this Act grant to the Company any servitude right or privilege (not being a servitude right or privilege of water in which parties other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such servitudes rights and privileges as aforesaid respectively. Power to grant servitudes &c.

17. The Company may in lieu of acquiring any lands for the purpose of any aqueduct conduit or pipes by this Act authorised acquire such servitudes and rights in such lands as they may require for the purpose of making maintaining renewing enlarging and repairing the same and may give notice to treat in respect of such servitudes and rights and may in such notice describe the nature thereof and the several provisions of the Lands Clauses Acts (inclusive of those with regard to limited owners and to arbitration and the summoning of a jury) shall apply to such servitudes and rights as fully as if the same were lands within the meaning of such Acts: Power to acquire servitudes only for aqueducts.

Provided also that nothing herein contained shall authorise the Company to acquire by compulsion any such servitude or right in any case in which the owner in his particulars of claim shall require the Company to acquire the lands in respect of which they have given notice to treat for the acquisition of a servitude or right only and every notice to treat for the acquisition of a servitude or right shall be endorsed with notice of this proviso:

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Provided that as regards any lands taken or used by the Company for the purpose of making and maintaining such aqueducts conduits or pipes the Company shall not (unless they give notice to treat for and have acquired such lands and not merely servitudes therein) be required or entitled to fence off or sever such lands from the adjoining lands but the owners or occupiers for the time being shall at all times after the completion of the works have the same rights of passing over such lands for all purposes of or connected with the use or enjoyment of the adjoining lands as if such lands had not been taken or used by the Company.

Power to
purchase
lands by
agreement.

18. The Company may for the general purposes of their undertaking purchase and hold or take on lease (by agreement but not otherwise) in addition to the lands delineated on the deposited plans and described in the deposited book of reference any lands and heritages not exceeding in the whole three hundred acres which the Company may from time to time require for the purpose of providing sites for manufacturing and other works and industries and for any of the purposes of their undertaking but the Company shall not create or permit a nuisance on any such lands :

Provided always that the Company shall not erect any station for generating electricity upon any lands acquired under this Act other than on the lands referred to in the First Schedule to this Act.

Period for
compulsory
purchase of
lands.

19. The powers of the Company for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the commencement of this Act.

Period for
completion
of works.

20. Subject to the provisions of this Act if the waterworks authorised by this Act are not completed within ten years from the commencement of this Act then on the expiration of that period the powers by this Act granted to the Company for executing any of such works not so completed or in relation thereto shall cease except as to so much thereof as is then completed but nothing herein contained shall restrict the Company from maintaining using extending enlarging altering replacing relaying increasing adding to or removing any of the aqueducts and other works at any time and from time to time as occasion requires.

21. Notwithstanding anything contained in this Act or A.D. 1912. shown on the deposited plans the Company shall not except by agreement with the Highland Railway Company in writing enter upon take or use any of the lands or works of the Highland Railway Company.

For protec-
tion of
Highland
Railway
Company.

22. In the execution of the works and the exercise of the powers by this Act authorised and conferred so far as they affect highways bridges and culverts in the county of Perth the following provisions for the protection of the Highland District Committee of the county council of the county of Perth (hereinafter in this section called "the district committee") shall (except as otherwise agreed to in writing between the Company and the district committee) have effect (that is to say):—

For protec-
tion of
Highland
District
Committee.

- (1) All aqueducts conduits tunnels or lines of pipes or other works to be laid in under or along any county highway or in under upon or across any county bridge shall so far as practicable be laid in such position in or at the side thereof as the district committee in writing under the hand of their surveyor for the district may reasonably direct and all works and operations to be executed by the Company shall be so executed at the risk of the Company and the Company shall maintain the tracts thereof for twelve months after the completion of the works:
- (2) The provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes shall extend and apply to all county highways and county bridges opened and broken up or interfered with by the Company in the execution of the works and the exercise of the powers of this Act Provided that the notice required by section 30 of that Act shall not be less than seven days instead of three days:
- (3) The plan required by section 31 of the last-mentioned Act shall be accompanied by a section of the proposed works and a short specification thereof and shall be delivered to the district committee or their surveyor for the district by the Company not less than in the case of a county bridge one month and in all other cases fourteen days before they commence to break

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or open up any county highway or interfere with any county bridge for the purpose of executing the works:

- (4) Nothing in this Act contained shall interfere with the right of the district committee to alter the level of or divert widen or improve in any manner they think fit any county highway in under or along which any aqueduct conduit tunnel or line of pipes of the Company shall have been laid:
- (5) Nothing in this Act contained shall interfere with the right of the district committee at any time or times to remove alter or rebuild any county bridge or the approaches thereto or culvert over near or attached to which any aqueduct conduit tunnel or line of pipes of the Company is carried in the same manner as they might have removed altered or rebuilt any such bridge or the approaches thereto or culvert if this Act had not been passed and such aqueduct conduit tunnel or line of pipes had not been constructed or laid over or near or attached to such bridge or culvert and in the event of any such bridge or the approaches thereto or culvert over or near or attached to which any such aqueduct conduit tunnel or line of pipes is laid being removed altered or rebuilt as aforesaid the Company shall at their own expense alter the position of such aqueduct conduit tunnel or line of pipes and any works by which such aqueduct conduit tunnel or line of pipes is carried over or near or attached to such bridge or the approaches thereto or culvert as aforesaid Provided always that during the removal alteration or rebuilding of such bridge or the approaches thereto or culvert as aforesaid the district committee shall afford all reasonable facilities for temporarily carrying such aqueduct conduit tunnel or line of pipes across or along any road or stream or river so as not to interrupt the continuous supply of water or to diminish the pressure of such supply through such aqueduct conduit or line of pipes:
- (6) All works shall be so executed by the Company as not to unduly stop the traffic and so far as reasonably practicable not in any way to impede or interfere

with the traffic on any highway or over any county bridge or the approaches thereto and no material to be used in the construction of any works by the Company shall be loaded unloaded or discharged and no cart traction engine or waggon shall be drawn up by the Company for the purpose of such loading unloading or discharge on any highway or bridge belonging to the district committee adjoining the generating station or any siding that may be made by the Company:

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- (7) The district committee shall not be liable for or in respect of any damage or injury done to any work of the Company by reason of such work being laid at a depth below the surface of any highway insufficient for its protection from injury arising from the reasonable use of any steam or other roller or traction engine for the repair of such county highway or from the passage of the ordinary traffic on such highway or in repairing any county bridge or the approaches thereto or any culvert connected therewith:
- (8)—(A) For the purposes of section 57 of the Roads and Bridges (Scotland) Act 1878 the Company shall be deemed to be the person by whose order any excessive weight shall have been passed or any extraordinary traffic conducted on the county highways in connection with the execution of the works by this Act authorised. The Company shall make payment to the district committee for and in respect of the carriage or haulage over any highway situate within the district of the district committee of materials and things to be used by the Company in the construction repair or maintenance of the works or any of them by this Act authorised or in the reconstruction thereof of threepence per ton for each mile for and in respect of such materials or things so carried or hauled by traction engine haulage and of twopence per ton for each mile for and in respect of such materials or things so carried or hauled in carts or waggons. Provided always with regard to that portion of the highway between the generating station and the Rannoch Railway Station such rates shall be regarded

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as the equivalent to and be deemed to be in respect only of the tear and wear of the surface of the said highway and shall be exclusive of the expenses of making good damage to such highway where the surface is broken through by the Company's operations or the constructing repairing maintaining or reconstructing the works or any of them as authorised by this Act All payments made by the Company to the said county council or the district committee in terms of this section shall be forthwith applied towards the maintenance of the highway over which the said materials or things are so carried or hauled and shall be taken into account in ascertaining the Company's liabilities if any in any claim that may be preferred against them by the said county council or the district committee in respect of extraordinary traffic ;

(B) In respect that the highways over which the materials and things aforesaid may be carried traverse in places boggy ground and that the highways are in such places resting on peat without any solid foundation the Company shall in the event of the surface of the roadway being cut through or damaged by such traffic at their own expense make good the surface of the roadway to the reasonable satisfaction of the surveyor of the district committee and have the work done in such a manner and with such expedition as shall cause no undue inconvenience to the local traffic of the district ;

(c) Before commencing the carriage or haulage of the materials or things aforesaid over any bridge belonging to or maintained by the district committee the Company shall be bound at their own expense to strengthen any such bridge in such manner and to such extent as the surveyor of the district committee may consider reasonably necessary And with regard to the following bridges on the highway between the generating station and the Rannoch Railway Station viz. the stone bridge over the River Ericht and the two steel and lattice bridges over the Allt Chalder and the Allt Eigheach and on the highway between

the generating station and the Struan Railway Station the stone bridge over the River Errochty at Trinafour which bridges are not considered as sufficient for heavy traffic it is hereby provided that in the event of any damage being done to any of these bridges or any of the approaches thereto by or through the carriage or haulage of such materials or things aforesaid the same shall be made good by the Company under the superintendence of the said surveyor and to his reasonable satisfaction and should the damage to any of the said bridges be such as in the joint opinion of the said surveyor and of the Company's engineer or in the opinion of the arbiter to be named by the sheriff of the county of Perth in the event of the said surveyor and engineer differing in opinion will necessitate their being rebuilt the Company shall be bound to rebuild the same at their own cost and to the reasonable satisfaction of the said surveyor and with regard to culverts the Company shall place strong planks at the time of haulage across any culverts which the said surveyor may point out;

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- (D) In the event of any part of the highways aforesaid being temporarily rendered impassable or so much as to be dangerous for passenger or vehicular traffic or of any of the bridges or culverts being rendered unsafe by or through any operations of the Company during the construction of the works by this Act authorised the Company shall relieve the district committee of all lawful claims in respect thereof and shall cause danger lights to be placed at night at the end and by the side of the parts of the highways aforesaid or of such bridges and culverts to be kept burning from one hour before sunset to one hour after sunrise and employ watchmen so as to ensure the safety of the public until the highways bridges and culverts have been repaired And the Company shall relieve the district committee of all claims for damages properly attributable to any such operations of the Company provided always that the Company

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shall if they see fit be entitled in name of the county council or the district committee to contest any such claim :

- (9) If any difference arises between the district committee and the Company touching this section or anything to be done or not to be done thereunder such difference shall failing agreement be referred to the decision of an arbiter to be named (failing agreement of the parties to name an arbiter) by the sheriff of the county of Perth on the application of either party and the decision of such arbiter shall be final.

Company
may dispose
of lands not
required.

23. Notwithstanding anything with respect to the sale of superfluous lands in the Lands Clauses Consolidation (Scotland) Act 1845 contained the Company may feu and lease for any term not exceeding ninety-nine years and also either before or after making any feu and lease thereof absolutely sell and dispose of to such persons and in such manner and for such consideration as the Company think fit any lands houses and property for the time being belonging to the Company which they do not require for the purposes of their waterworks and generating station and on the lease or sale by the Company of any such lands houses and property they may reserve to themselves all or any part of the water or water rights or other servitudes belonging thereto and may make the lease or sale subject to such reservation accordingly and may also make any such lease or sale subject to such other reservations special conditions restrictions and provisions as they think fit.

Temporary
discharge of
water into
streams.

24. The Company may at any time cause the water in any aqueduct by this Act authorised to be temporarily discharged into any available stream or watercourse.

In the exercise of the power conferred by this section the Company shall do as little damage as may be and shall make full compensation to all persons for any damage sustained by them by reason or in consequence of the exercise of such power the amount of compensation to be settled in case of difference by arbitration.

Accommo-
dation for
workmen
&c.

25. The Company shall if and when required by the local authority of the district in which the works by this Act authorised are situate (in this section called "the local authority")

make provision to the satisfaction of the local authority for the proper housing and sanitary requirements of the persons employed in constructing the works by this Act authorised and for the treatment of cases of sickness (other than infectious disease) and accident occurring among the said persons during the construction of the said works In considering what provision ought to be made for the said purposes the local authority shall take into consideration the provision already available in the neighbourhood of or conveniently accessible from the said works. A.D. 1912.

In the event of any dispute arising between the Company and the local authority as to the amount or nature or situation of the housing accommodation and sanitary requirements to be provided or as to the sufficiency of the provision for the treatment of cases of sickness (other than infectious disease) and accident or as to the time within which such accommodation shall be provided and such provision made or as to the carrying out by the Company of any requirement of the local authority under this section either party may appeal to the Local Government Board for Scotland (in this section called "the Board") and their decision shall be final and binding on both parties :

Provided that if it appear to the Board at any time that sufficient provision for the aforesaid purposes is not made they shall have power to require the Company to make provision or additional provision therefor to the satisfaction of the Board.

In the event of the Company or the local authority failing to comply with any order or requirement of the Board under this section they shall be liable to a penalty not exceeding twenty pounds and to a further penalty not exceeding five pounds for every day during which such failure continues and such penalties shall be recoverable with expenses at the instance of the Lord Advocate on behalf of the Board in any competent court.

For the purposes of this section the Board shall have the same powers of holding inquiries and of requiring reports to be made by local authorities and their officials as they have under the Public Health (Scotland) Act 1897 for the purposes of that Act and the provisions of the said Act relating to such inquiries and reports shall apply accordingly.

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CAPITAL.

Capital.

26. The capital of the Company shall be two hundred thousand pounds in twenty thousand shares of ten pounds each.

Limitation as to issue of shares.

27. Except as hereinafter provided the Company shall not issue any share created under the authority of this Act nor shall any such share vest in the person accepting the same unless and until a sum not being less than one fifth of the amount of such share is paid in respect thereof.

Calls.

28. One fifth of the amount of a share shall be the greatest amount of a call and three months at least shall be the interval between successive calls and three fifths of the amount of a share shall be the utmost aggregate amount of the calls made in any year upon any share.

Receipt in case of persons not sui juris.

29. If any money is payable to a shareholder or mortgagee or debenture stock holder being a minor idiot or lunatic the receipt of his tutor or curator or the guardian or committee of his estate shall be a sufficient discharge to the Company.

Power to divide shares.

30. Subject to the provisions of this Act the Company with the authority of three fourths of the votes of the shareholders present in person or by proxy at a general meeting of the Company specially convened for the purpose may divide any shares in their capital into half shares of which one shall be called "preferred half share" and the other shall be called "deferred half share" but the Company shall not divide any share under the authority of this Act unless and until not less than sixty per centum upon such share has been paid up and upon every such division fifty per centum upon the entire share shall be carried to the credit of the deferred half share (being the whole amount payable thereon) and the residue to the credit of the preferred half share.

Dividends on half shares.

31. The dividend which would be payable on any divided share if the same had continued an entire share shall be applied in payment of dividends on the two half shares in manner following (that is to say) First in payment of dividend after such rate not exceeding six pounds per centum per annum as shall be determined once for all at a general meeting of the Company specially convened for the purpose on the amount for the time being paid up on the preferred half share and the

remainder (if any) in payment of dividend on the deferred half share and the Company shall not pay any greater amount of dividend on the two half shares than would have from time to time been payable on the entire share if the same had not been divided. A.D. 1912.

32. Each preferred half share shall be entitled out of the profits of each year to the dividend which may have been attached to it by the Company as aforesaid in priority to the deferred half share bearing the same number but if in any year ending the thirty-first day of December there shall not be profits available for the payment of the full amount of dividend on any preferred half share for that year no part of the deficiency shall be made good out of the profits of any subsequent year or out of any other funds of the Company. Dividend on preferred half shares to be paid out of profits of year only.

33. Forthwith after the creation of any half shares the same shall be registered by the directors and each half share shall bear the same number as the number of the entire share certificate in respect of which it was issued and the directors shall issue certificates of the half shares accordingly and shall cause an entry to be made in the register of the entire shares of the conversion thereof but the directors shall not be bound to issue a certificate of any half share until the certificate of the existing entire share be delivered to them to be cancelled unless it be shown to their satisfaction that such certificate is destroyed or lost and on any certificate being so delivered up the directors shall cancel it. Half shares to be registered and certificates issued.

34. The terms and conditions on which any preferred half share or deferred half share created under this Act is issued shall be stated on the certificate of each such half share. Terms of issue to be stated on certificates.

35. The provisions of the Companies Clauses Consolidation (Scotland) Act 1845 with respect to the forfeiture of shares for non-payment of calls shall apply to all preferred half shares created under the authority of this Act and every such preferred half share shall for that purpose be considered an entire share distinct from the corresponding deferred half share and until any forfeited preferred half share shall be sold by the directors all dividends which would be payable thereon if the same had not been forfeited shall be applied in or towards payment of any expenses attending the declaration of forfeiture thereof and of the arrears of calls for the time being due thereon with interest. Forfeiture on preferred half shares.

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Preferred half
shares not to be
cancelled or sur-
rendered.

Half shares
to be half
shares in
capital.

36. No preferred half share created under the authority of this Act shall be cancelled or be surrendered to the Company.

37. The several half shares under this Act shall be half shares in the capital of the Company and every two half shares (whether preferred or deferred or one of each) held by the same person shall confer such right of voting at meetings of the Company and (subject to the provisions hereinbefore contained) shall confer and have all such other rights qualifications privileges liabilities and incidents as attach and are incident to an entire share.

Portion of
capital to be
subscribed
before com-
pulsory
powers put
in force.

38. When a sum of not less than thirty thousand pounds of the capital of the Company shall have been subscribed under contract binding the parties thereto their heirs executors and administrators for the payment of the several sums in such portion of capital by them respectively subscribed it shall be lawful for the Company to put in force the powers of this Act in relation to the compulsory taking of land for the purposes thereof and such sum shall be deemed to be the prescribed sum for the purposes of section 16 of the Lands Clauses Consolidation (Scotland) Act 1845.

Certificate of
Board of
Trade that
portion of
capital has
been sub-
scribed.

39. A certificate under the hand of a secretary or an assistant secretary of the Board of Trade certifying that the said sum of thirty thousand pounds has been subscribed as aforesaid shall be sufficient evidence thereof and on the application of the Company and the production of such evidence as the Board of Trade shall think proper and sufficient they shall grant a certificate accordingly.

Fully paid-
up shares
may be
issued in
payment for
land &c.

40. The Company may agree with the owner of any lands or any estate or interest therein or any right or servitude in over or affecting the same which the Company are by this Act authorised to acquire that the consideration to be paid for the same including the compensation (if any) for damage by severance or other injurious affection of the lands of the owner shall be paid wholly or in part by the allotment to such owner of such number of fully paid-up shares in the capital of the Company as shall be agreed upon between the Company and such owner and thereupon it shall be lawful for the Company to issue such shares accordingly and all shares issued pursuant to this section shall for all purposes be deemed to be fully paid-up shares in the capital of the Company and shall vest as such in

the person to whom they are issued and the names of the holders thereof shall be inserted as such in the register of shareholders. A.D. 1912.

41. The Company may subscribe for purchase hold and dispose of shares or stock in any incorporated company taking or agreeing to take a supply of power or electrical energy from the Company and may lend money on mortgage bond or other security to any such company or to any firm or person taking or agreeing to take such supply from the Company Provided that the amount so subscribed expended and lent by the Company under this section shall not at any one time exceed fifty thousand pounds. Power to subscribe for shares or lend money to other undertakings.

42. The Company may borrow on mortgage of the undertaking any sum or sums not exceeding in the whole one third part of the share capital for the time being issued but no part thereof shall be borrowed until the whole of the capital in respect of which the borrowing power is exercised is issued and accepted and one half thereof is paid up and the Company have proved to the sheriff who is to certify under the forty-second section of the Companies Clauses Consolidation (Scotland) Act 1845 before he so certifies that the whole of such portion of capital has been issued and accepted and that one half thereof has been paid up and that not less than one fifth part of the amount of each separate share in such portion of capital has been paid on account thereof before or at the time of the issue or acceptance thereof and that such portion of capital was issued bonâ fide and is held by the persons to whom the same was issued or their executors administrators successors or assigns and that such persons their executors administrators successors or assigns are legally liable for the same and upon production to such sheriff of the books of the Company and of such other evidence as he shall think sufficient he shall grant a certificate that the proof aforesaid has been given which shall be sufficient evidence thereof. Power to borrow.

43. The mortgagees of the undertaking may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a judicial factor In order to authorise the appointment of a judicial factor in respect of arrears of principal the amount owing to the mortgagees by whom the application for a judicial factor is made shall not be less than ten thousand pounds in the whole. For appointment of a judicial factor.

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Debenture
stock.

44. The Company may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 but notwithstanding anything therein contained the interest of all debenture stock and of all mortgages at any time created and issued or granted by the Company under this Act or any subsequent Order or Act shall subject to the provisions of any subsequent Order or Act rank *pari passu* (without respect to the dates of the securities or of the Orders or Acts of Parliament or resolutions by which the stock and mortgages were authorised) and shall have priority over all principal moneys secured by such mortgages Notice of the effect of this enactment shall be endorsed on all mortgages and certificates of debenture stock.

Application
of moneys.

45. All moneys raised under this Act whether by shares debenture stock or borrowing shall be applied only to the purposes of this Act to which capital is properly applicable.

First meet-
ing of Com-
pany
Number and
qualification
of directors
&c.

46.—(A) The first ordinary meeting of the Company shall be held within six months after the commencement of this Act.

(B) The number of directors shall be three but the Company may vary the number provided that the number be not less than three nor more than five.

(c) The qualification of a director shall be the possession in his own right of not less than fifty shares.

(D) The quorum of a meeting of directors shall be two.

(E) The Right Honourable John James Viscount Dalrymple The Right Honourable Archibald Seton Lord Montgomerie and Archibald Brown Campbell shall be the first directors of the Company and shall continue in office until the first ordinary meeting held after the commencement of this Act At that meeting the shareholders present in person or by proxy may either continue in office the directors appointed by this Act or any of them or may elect a new body of directors or directors to supply the place of those not continued in office the directors appointed by this Act being if they continue qualified eligible for re-election and at the first ordinary meeting to be held in every year after the first ordinary meeting the shareholders present in person or by proxy shall (subject to the power hereinbefore contained for varying the number of directors) elect persons to supply the places of the directors then retiring from

office agreeably to the provisions of the Companies Clauses Consolidation (Scotland) Act 1845 and the several persons elected at any such meeting being neither removed nor disqualified nor having died or resigned shall continue to be directors until others are elected in their stead in manner provided by the same Act. A.D. 1912.

SUPPLY.

47. Subject to the provisions of this Act the area of supply of the Company (in this Act called "the area of supply") shall be the area of the lands described in the First Schedule to this Act and delineated on the deposited plans but in case of difference the deposited plans shall prevail. Area of supply.

48. The maximum prices to be charged by the Company for electrical energy supplied by them within the area of supply shall not exceed those stated in the Second Schedule to this Act but nothing in this section or in the Electric Lighting Acts contained shall prevent the Company from making any agreements as hereinafter provided. Maximum prices for electrical energy.

49. The Company may supply energy by agreement outside the area of supply but the powers of the Company in respect of such supply of energy shall be subject to the following provisions:— Conditions affecting supply.

(1) Energy shall be supplied under this section only—

(A) For supply in bulk to authorised distributors;
and

(B) For providing power to any person:

(2) The energy supplied to authorised distributors may be used by them for lighting or other purposes and the energy supplied to any person for power may be used by such person for lighting any premises on any part of which the power is utilised but save as aforesaid the Company shall not supply energy for lighting purposes:

(3) Nothing contained in this section shall be deemed to confer upon the Company any powers enabling them to break up any streets outside the area of supply.

50. The Company and any person within the area of supply and any authorised distributor or any person requiring a supply of electrical energy without the area of supply may enter Agreements.

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A.D. 1912. — into and carry into effect contracts agreements and arrangements for and with respect to all or any of the following matters (that is to say):—

- (1) The supply by the Company to such authorised distributor or person of electrical energy in bulk or otherwise and of plant fittings or materials :
- (2) The acquisition and exercise of servitudes for the placing of mains cables posts and wires over and under lands houses and property belonging to any such authorised distributor or person :

And any person under disability shall have and be entitled to exercise all such powers as may be necessary for making and giving effect to any such agreement.

For protec-
tion of Post-
master
General.

51. Any electrical energy supplied under this Act shall be used by the local authority company body or person receiving such supply in such manner as to prevent any interference (whether by induction or otherwise) with the telegraphic lines of the Postmaster General or with telegraphic communication by means of such lines but this provision shall not apply to any such local authority company body or person who is or are authorised to use electrical energy by Act of Parliament or by an Order confirmed by or having the effect of an Act of Parliament containing provisions for the protection of such telegraphic lines.

Notice of
discontinu-
ance of
supply.

52. Any person supplied with energy by the Company under this Act who is desirous of discontinuing to receive such supply shall give to the Company twelve months' notice in writing of his intention to discontinue to receive such supply. Such notice may be given so as to expire at the end of the period for which such person has contracted to continue to receive and pay for such supply or at any subsequent date.

For preven-
tion of im-
proper use.

53. If any authorised distributor or person uses the energy supplied to him by the Company for any purposes or deal with it in any manner so as to interfere unduly or improperly with the efficient supply of energy to any other authorised distributor or person by the Company under this Act the Company may if they think fit cease to supply energy to the first-mentioned authorised distributor or person so long as the energy is so used or dealt with.

54. The consent of the local authority to the placing of electric lines above ground under section 14 of the Electric Lighting Act 1882 and paragraph (b) of section 10 of the schedule to the Electric Lighting (Clauses) Act 1899 shall not be unreasonably withheld and if any question arises whether that consent is unreasonably withheld or not that question shall be decided by the Board of Trade.

A.D. 1912.

Overhead
wires.

55. The Company may with the consent of the road authority erect and maintain in or on any road or footpath within the area of supply which they are authorised to break up such posts as may be necessary for carrying any of their electric lines overhead.

Power to
erect posts.

56.—(1) Any electric lines laid down in any street by the Company under this Act shall be laid or carried in such line or route and in such manner as may be agreed between the Company and the local authority or as failing agreement shall be settled by the Board of Trade And the Company shall show on the plan of the works to be served on such local authority in accordance with the provisions of the Electric Lighting (Clauses) Act 1899 incorporated with this Act the route proposed to be taken and the manner in which the electric lines are to be laid or carried.

As to route.

(2) The reasonable and proper costs charges and expenses incurred by any local authority in relation to any reference to the Board of Trade under this section shall unless the Board of Trade shall certify that the action of the local authority in the matter has been unreasonable be paid by the Company.

57.—(1) The Board of Trade may on the application of the Company or of any authorised distributors or person to whom the Company is supplying energy under this Act appoint and keep appointed one or more competent and impartial person or persons to be an electric inspector or electric inspectors under this Act and the Board of Trade may prescribe the fees to be taken by any such inspector and these fees shall be accounted for and applied as may be directed by the Board of Trade.

Appoint-
ment of
electric
inspectors.

(2) The Company shall whenever reasonably required by any county authority or local authority through whose district any trunk main is laid test and furnish a record of the testing of the portion of main within their district and in case the Company fail to comply with the provisions of this subsection

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A.D. 1912. any such county authority or local authority may apply to the Board of Trade to appoint an inspector for the purpose of testing such main and the foregoing provisions of this section shall apply to the appointment of such inspector and the Company shall pay the cost of such testing.

SUPPLEMENTAL.

As to application for Provisional Orders.

58. Nothing contained in this Act shall prevent the Company from applying and the Company may apply for Provisional Orders under the Electric Lighting Acts 1882 to 1909 and the Electric Lighting (Clauses) Act 1899.

Dwelling-houses for employees.

59. The Company may erect and maintain upon the lands for the time being belonging to or leased by them cottages or dwelling-houses suitable for their officers workmen and servants.

As to payment of interest out of capital during construction.

60. Notwithstanding anything in this Act or in any Act or Acts incorporated herewith contained the Company may out of any moneys by this Act authorised to be raised pay interest at such rate not exceeding three pounds per centum per annum as the directors may determine to any shareholder on the amount from time to time paid up on the shares held by him from the respective times of such payments until the expiration of the time by this Act limited for the completion of the works by this Act authorised or such less period as the directors may determine but subject to the following conditions (that is to say):—

(A) No such interest shall begin to accrue until the Company shall have deposited with the Board of Trade a statutory declaration by two of the directors and the secretary of the Company that two thirds at least of the share capital authorised by this Act in respect of which such interest may be paid has been actually issued and accepted and is held by shareholders who or whose executors administrators or assigns are legally liable for the same :

(B) No such interest shall accrue in favour of any shareholder for any time during which any call on any of his shares is in arrear :

(C) The aggregate amount to be so paid for interest shall not exceed thirty thousand pounds and the amount so paid shall not be deemed share capital in respect

of which the borrowing powers of the Company may be exercised but such borrowing powers shall be reduced to the extent of one third of the amount paid for interest as aforesaid: A.D. 1912.

(D) Notice that the Company have power so to pay interest out of capital shall be given in every prospectus advertisement or other document of the Company inviting subscriptions for shares and in every certificate of shares:

(E) The half-yearly accounts of the Company shall show the amount of capital on which and the rate at which interest has been paid in pursuance of this section.

Save as hereinbefore set forth no interest shall be paid out of any share or loan capital which the Company are by this Act or any other Order or Act authorised to raise to any shareholder on the amount of the calls made in respect of the shares held by him but nothing in this Act shall prevent the Company from paying to any shareholder such interest on money advanced by him beyond the amount of calls actually made as is in conformity with the Companies Clauses Consolidation (Scotland) Act 1845.

61. Nothing in this Act shall affect prejudicially any estate right power privilege or exemption of the Crown or shall subject to the provisions of this Act any land buildings or works vested in or occupied by the Crown or any department of His Majesty's Government except to such extent as His Majesty or such department may voluntarily agree. Crown rights.

62. Nothing in this Act shall exempt the Company or their undertaking from the provisions of or deprive the Company of the benefits of any general Act relating to electricity or to the supply of or price to be charged for energy which may be passed after the commencement of this Act. Provision as to general Acts.

63. All costs charges and expenses of and preliminary to and incidental to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company. Costs of Act.

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A.D. 1912. The SCHEDULES referred to in the foregoing Act.

THE FIRST SCHEDULE.

The four fields or enclosures adjacent to one another shown on sheet No. XXXV. N.E. of the Ordnance Survey map (second edition 1900) in the parish of Fortingall in the county of Perth bounded on the west and north-west by the plantation near the Bridge of Ericht known as Tom Dubh on the south and south-east by the public road between the Bridge of Ericht and Kinloch Rannoch on the north by the roadway between Ardlarach and Tom Dubh and on the north-east and east by the roadway leading from Ardlarach to a point on the before-mentioned public road about one thousand and twenty yards or thereby measured in an easterly direction from the Bridge of Ericht.

THE SECOND SCHEDULE.

In this schedule the expression "unit" shall mean the energy contained in a current of one thousand ampères flowing under an electric motive force of one volt during one hour.

SECTION 1.

Where the Company charge any consumer by the actual amount of energy supplied to him they shall be entitled to charge him at the following rates per quarter:—

- (A) For any quantity not exceeding the equivalent of four hundred hours of supply at the maximum power which has been demanded by him at the rate of fourpence per unit:
- (B) For any further quantity exceeding the equivalent of four hundred hours of supply at such maximum power at the rate of threepence per unit.

SECTION 2.

Where the Company charge any consumer by the electrical quantity contained in the supply given to him they shall be entitled to charge him according to the rates set forth in section 1 of this schedule the

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amount of energy supplied to him being taken to be the product of A.D. 1912.
such electrical quantity and the declared pressure at the consumer's
terminals that is to say such a constant pressure at those terminals as
may be declared by the Company under any regulations made under
this Act.

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